

22PSCV00103 22PSCV00103

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Mickey's Liquor

& Market, Inc. v. Shin et al., Case No. 22PSCV00103

ORDER ON EX PARTE

APPLICATION TO CONTINUE TRIAL

Pending before the Court is Defendants and Cross-Complainants John J. Shin and Sue S. Shin ("Defendants") ex parte application to continue the jury trial set for August 25, 2026. The Court has reviewed Defendants' ex parte application and accompanying declaration, as well as the opposition filed by Plaintiff Mickey's Liquor & Market, Inc. and Plaintiff/Cross-Complainant Elias Kai. For the reasons stated herein, the Court denies the application, without prejudice, and without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

"A

party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request . . . by a noticed motion or an ex parte application. . . , with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered." (Cal. Rules of Court, rule 3.1332(b).)

"Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an

affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . .

(1)

The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2)

The unavailability of a party because of death, illness, or other excusable circumstances;

(3)

The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4)

The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5)

The addition of a new party if:

(A)

The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B)

The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A

party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A

significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(Cal.

Rules of Court, rule 3.1332(c).)

"In

ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1)

The proximity of the trial date;

(2)

Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3)

The length of the continuance requested;

(4)

The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5)

The prejudice that parties or witnesses will suffer as a result of the continuance; . . .

(7)

The court's calendar and the impact of granting a continuance on other pending trials;

(8)

Whether trial counsel is engaged in another trial;

(9)

Whether all parties have stipulated to a continuance;

(10)

Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11)

Any other fact or circumstance relevant to the fair determination of the motion or application."

(Cal.

Rules of Court, rule 3.1332(d).)

At the

outset, the Court notes that this case has been pending since January 31, 2022.

The trial had already been continued six times at the point where the Court bifurcated the trial and held a bench trial on the equitable claims on June 3,

2026. On May 26, 2026, the day before the date set for the Final Status

Conference, Defendants filed a Status Report indicating that the defense intended to file a renewed motion for terminating sanctions based on

Plaintiff's spoliation of evidence. Then, at the initial Final Status

Conference on May 27, 2026, Defendants' counsel referenced late-obtained discovery in objecting to the current trial date of June

3, 2026, to which the Court responded that Defendants were free to file an

appropriate motion or ex parte application. (Minute Order dated 5/27/2026.)

On June

2, 2026, Defendants filed an ex parte application seeking a continuance of the trial date; the application was noticed for June 3, 2026 (the date the bench

trial was set to commence). In that application, Defendants again indicated that they intended to file a motion for terminating sanctions based on spoliation of evidence, noting that certain building plans were not produced until May 26, 2026 and that emails from 2024 between Plaintiff's contractor, Andres Lugo, and Elias Kai were not produced until May 7, 2026. On June 3, 2026, the Court denied the application, noting, among other things, that despite knowing the basis for the motion since approximately May 7, 2026 (the date Lugo's emails were produced), Defendants' contemplated motion still had not been filed and that the bench trial encompassed a narrower set of issues than the jury trial such that the late-obtained discovery was not material to the issues to be presented during the bench trial. On June 3, 2026, Defendants also suggested for the first time that the Court was disqualified from hearing the matter and that a motion to disqualify was contemplated. As no motion had been filed, the Court proceeded to trial. Trial concluded on June 8, 2026 and the Court issued its decision on June 9, 2026.

On July

28, 2026, the Court held a Status Conference Re: Trial regarding the jury trial date of August 25, 2026. At the Status Conference, Defendants' counsel reaffirmed Defendants' intention to file two motions: a motion for terminating sanctions and a motion to disqualify. No such motion has been filed to date.

On July

30, 2026, Defendants filed the instant ex parte application, seeking a continuance of the trial date, citing Defendants' counsel's recent health issues and Defendants' intention to file the aforementioned motions. Having considered the facts presented in Defendants' application, as well as the factors enumerated in California Rules of Court rule 3.1332, the Court finds that Defendants have not made an affirmative showing of good cause requiring the continuance. Defendants' plan to file a motion for terminating sanctions was referenced over two months ago, in a May 26, 2026 status report, and the issue of disqualification was referenced by Defendants' counsel nearly two months ago at a hearing on June 3, 2026. While the ex parte application notes that the anticipated motions "will rely on events that occurred during the FSC and bench trial," the bench trial concluded more than 50 days ago, on June 8, 2026. Defendants note that they received the transcripts for the FSC and bench trial "this month," but the Court finds that Defendants have not demonstrated diligence in obtaining expedited transcripts or in preparing the contemplated motions, particularly in light of the August 25 trial date and the fact that trial continuances are disfavored.

Under

the circumstances presented, the application is denied.